Energy Wave **energywave.ai** • Capital Readiness — terms, use of funds and three-month objectives
15 October 2026 · DD-2026-10-15-r5.3-draft

CONFIDENTIAL — DRAFT — FOR DISCUSSION

A three-month bridge to capital readiness. Not a seed round.

A SAFE that stands up both entities, secures the IP position and funds the founder full-time, so that at the end of ninety days EnergyWave is an entity that can be invested in, with a filed IP position, a reviewed first module, written go / no-go criteria and a prepared next round. The materials say it plainly and this page keeps it that way.

THE INSTRUMENT

Term	Value	Status
Amount	**$60,000**	DECK
Instrument	SAFE	DECK
Runway	3 months, founder full-time	DECK
Valuation cap / discount / MFN	“Terms / cap set with counsel”	OPEN
Issuer	EnergyWave, Inc. (Delaware) — formation status unverified at release	OPEN — D3
Strategic path	Structured to pursue strategic investment from In-Q-Tel	DECK

USE OF FUNDS (DECK, ESTIMATED ALLOCATION)

Line	Purpose	Amount
Entity formation & legal	C-corp + 501(c)(3) setup	$4,000
IP / patent counsel retainer	K&L Gates — provisional filings	$25,000
Founder runway	3 months, full-time	$24,000
Reserve & travel	Investor / advisor meetings	$7,000
Total	**Capital-readiness round**	**$60,000**

Estimated allocation — confirm IP retainer and founder runway with counsel (deck slide 11).

WHAT COUNSEL HAS ACTUALLY QUOTED — DATED, VERBATIM WHERE IT MATTERS

Item	Counsel’s words	Source
Coversheet provisional	“we can file a coversheet provisional application for $2,000, which covers some app and claim prep.”	Dennis Majewski, K&L Gates, 5 Oct 2026 (M-19)
Non-provisional	“The cost to prepare a non-provisional application depends on the number of embodiments and length of the application. Typical ranges are between $10k to $20k.”	same
Filing mechanics	“We would file the application in the name of the inventors, then later assign to the company after it is formed.”	same
Formation	“We approximate around $2800 for the work to look into the current EnergyWave DE entity, draft the formation and organizational docs (Bylaws, Certification of Incorporation, Organizational Consent, and SS-4 application), and account for the filing fees …”	Trinh Truong, K&L Gates, 5 Oct 2026 (M-19)

Read against the deck: the $4,000 entity line covers counsel's ~$2,800 formation estimate with margin but not yet the 501(c)(3) application, and the $25,000 IP line covers a coversheet provisional ($2,000) and most of a non-provisional ($10–20k). Neither quote is an engagement; no fee-authorization evidence is included in this package. OPEN

THREE-MONTH OBJECTIVES — AND WHAT "DONE" MEANS FOR EACH

#	Objective (deck)	Evidence that closes it	Today
1	Form both entities and establish the IP strategy with K&L Gates; file initial provisional protection	Delaware certificate and file number for EnergyWave, Inc.; EIN; counsel's answers to the four formation questions; a coversheet provisional filed in the inventors' names with its application number; 501(c)(3) formation documents.	OPEN
2	Complete the technical review of the Sweet module and define the humanoid power-budget specification	A written characterization plan with pre-registered pass / kill criteria; a power-budget specification for simultaneous human-grade sensing and motion against lithium-ion; both reviewed by the technical principals.	OPEN
3	Define measurable go / no-go criteria and prepare the next round	Gate criteria published to investors before any result; the Seed Round package (amount, milestones, use of funds) built from the raise model with every placeholder validated.	OPEN

CAPITAL RAISED TO DATE

Approximately **$10,000**, including founder contributions (founder's statement, 9 October 2026, given for the xTech application). No outside debt or equity. A competition prize is not capital raised and is not counted here. DRAFT

WHY A BRIDGE AND NOT A SEED

An investor who reads "not a seed round" and then finds a Seed Round folder beside this one should see discipline, not contradiction: the bridge is small because it is a bridge. The Seed Round is the round the bridge is designed to reach, and it is defined only once the entity exists, the first module is reviewed and the criteria are written. Its amount and terms are the founder's decision and are marked open until taken.

Sources: Oct-13 deck slides 10–11 and one-pager (S-01, S-02); original counsel messages of 5 Oct 2026 (M-19, Outlook locators in SOURCE_LEDGER.md); Approved_Submission_Corrections_2026-10-09.txt item 6 (M-06); DECISIONS.md D1, D3.